

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Friday, August 07, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
----------	---------------------

26CV-03684	Nitricity, Inc. vs California Department of Food and Agriculture, et al.
------------	--

Ruling on Preliminary Injunction

This matter having been submitted to the Court for ruling following a hearing on July 31, 2026, Petitioner's request for a preliminary injunction is GRANTED.

The Court has thoroughly reviewed and balanced the potential harms a preliminary injunction might cause or prevent against the Petitioner's likelihood of success on the merits of the petition. At the time of the hearing, the Court announced a tentative ruling to deny the preliminary injunction on the basis of potential widespread harm that might occur if Petitioner's fertilizer product continues to be distributed and sold as "organic." At the time, the Court took the view that these potential and unquantifiable harms far outweighed the likelihood of success on the merits.

However, though the course of the hearing and arguments of counsel, it became clear to the Court that such harms are speculative, and even if they were to occur, these harms would not put the health and safety of the public at risk. The Court acknowledges the importance of oversight, regulation, and enforcement through the California Department of Food and Agriculture of products to be marketed and sold as "organic" or "non-

synthetic.” The Court further acknowledges the value of the “organic” label and need to ensure public trust in products that claim registration. On balance, however, any harm to CDFA or the public, is substantially outweighed by the irreparable, economic harm to Petitioner, Petitioner’s employees, and Petitioner’s long-term viability as a profitable business, in the event an injunction is not granted and Petitioner nonetheless prevails on the merits.

The Court does believe that in order to mitigate potential harms to the direct consumer and general public that a disclaimer accompanying any sale or marketing of Petitioner’s product is necessary. Such a disclaimer puts the consumer on notice that they are purchasing a product whose registration as “organic” has been called into question by the regulatory agency, the Department of Food and Agriculture.

The Court therefore GRANTS the preliminary injunction and orders as follows:

- A. Pending a determination by this Court on the merits of and final judgment on Petitioner’s petition for writ of mandate, Respondents, California Department of Food and Agriculture (CDFA) and Karen Ross, in her capacity as Secretary of the California Department of Food and Agriculture, are enjoined from:
 1. Giving effect to CDFA’s nonrenewal determination with respect to Nitricity’s Ash Tea 2.9-0-0 Liquid Fertilizer (ID # 1003023) and Calcium-Fortified Ash Tea 2.9-0-0 Liquid Fertilizer (ID # 1055817);
 2. Taking any action to cause the above products’ OIM registrations to lapse, expire, or become ineffective, or treating the above products’ OIM registrations as having lapsed, expired or become ineffective based on CDFA’s challenged nonrenewal determination or synthetic classification;
 3. Taking adverse enforcement action against Nitricity, or the consumers or distributors of the above products based on the distribution, sale, purchase, or use of the products as organic input materials in California for failure to possess OIM registrations, to the extent that alleged failure arises from CDFA’s challenged nonrenewal determination or synthetic classification.
- B. Petitioner, Nitricity, may continue to distribute and sell the above products in California during the pendency of the injunction, contingent on Nitricity providing all consumers, purchasers, distributors, or any other party acquiring the products for use as an organic fertilizer based on the OIM registration, with a disclaimer that reads as follows:

This product’s Organic Input Material provisional registration issued by the California Department of Food and Agriculture remains in effect exclusively pursuant to a court ordered preliminary injunction. The California Department of Food and Agriculture has determined that this fertilizing material contains a prohibited synthetic form of nitrogen and does not currently comply with the National Organic Program standards for use in organic crop production. This determination is the subject of ongoing litigation, wherein Nitricity, Inc. disputes that the fertilizer contains synthetic nitrogen.
- C. Petitioner is ordered to conspicuously post this disclaimer in writing alongside and equally visible with any marketing of the above products regardless of the advertising medium if that marketing is reasonably anticipated to reach a

California consumer. Additionally, every sale of the above products, regardless of volume, manner of sale, or nature of purchaser, that takes place in California after August 7, 2026, is to be accompanied by written notice of the disclaimer. Sales between July 1, 2026, and August 7, 2026, are subject to the terms of the previously issued temporary restraining order, which is hereby terminated in favor of the preliminary injunction.

Petitioner is ordered to prepare an order for this Court's signature, consistent with this ruling, within five (5) court days.

Review of Case Status: Petition for Writ of Mandate

Appearance required. Remote appearances are permitted.

25CV-00868

Miguel Alcaraz vs Scholle IPN Packaging, Inc., et al.

Status Conference

CONTINUED pursuant to the joint status report filed July 22, 2026, to September 29, 2026, at 8:15 a.m. in Courtroom 8, for the parties to finalize the long-form settlement and seek preliminary approval. A hearing on the motion for preliminary approval will be set upon filing of said motion.

25CV-04524

Aracely Duran vs Hannah Wampler, et al.

Motion to Compel Further Responses to Form Interrogatories, Set One, Propounded on Defendant Miles Wampler

Continued to August 28, 2026, at 8:15 a.m. in Courtroom 8.

"A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either *in person, by telephone, or by video conference*, to informally resolve each issue presented by the motion." (Code Civ. Proc., § 2016.040, subd. (a), [italics added].)

Here, the meet and confer requirements of section 2016.040 have not been met. Not only was there insufficient time to properly meet and confer, the meet and confer that did occur was by way of letter and email communications. Pursuant to Code of Civil Procedure section 2016.040 subdivision (a), there must be an attempt to meet and confer in person, by telephone, or by video conference.

The parties are ordered to engage in meet and confer efforts over their dispute in person, by phone, or by video conference, as required by Code of Civil Procedure section 2016.040, subdivision (a).

If the parties are able to resolve their dispute, then Plaintiff shall promptly take the motions to compel further responses off calendar. If the parties are not able to resolve